YDF PREA Compliance

Briefing and document package

Sacramento County Probation Department
Youth Detention Facility

WORKING DRAFT for departmental review. Not legal advice. Route to County Counsel before circulating outside the department.

Gap register Revision 11, 93 requirements assessed against 17 departmental documents.

What this package is

A review of the department's PREA posture at the Youth Detention Facility, and the documents produced from it. Everything here traces to one worksheet, the gap register, which assesses 91 requirements from 28 CFR Part 115 Subpart D and California Title 15 against the 17 departmental documents produced to the review.

- **The analysis is complete.** Nothing in this package is waiting on further review.
- **Most of the remediation is drafted.** Amended policy text exists for seven of the fifteen recommended changes, written out and ready to be marked up.
- **What is left needs decisions, not analysis.** A designation, an assignment, and six documents the review asked for and has not received. Those are listed at the end.
- **Nothing here is a finding that the department failed to do something.** The review can only speak to the documents produced to it. Where a practice is not written down, the finding says it does not appear in the documents reviewed, which is a different statement. Several findings will close on production of a document rather than on any change in practice.

What we need

These are the items that cannot move without a decision from the department. They are reproduced from the management brief at Attachment A, which carries the reasoning behind each one.

1. **Name a PREA Coordinator and a facility compliance manager.** Our own order already sends work to that position.
2. **Decide who investigates youth on youth cases** below the level of sexual assault. It is not written down anywhere.
3. **Send WIC 625.6(d) to County Counsel.** It decides whether the interrogation finding is a violation we are carrying or a good practice we should adopt anyway.
4. **Give us the rosters and post assignments.** They settle whether the staffing question is a real gap or a paperwork gap.
5. **Produce five documents:** the PREA Policy itself, OO 1354 on separation, the resident handbook, the hiring procedure, and the contractor and volunteer screening procedure. Some findings close on handing the document over, with nothing else to fix. The PREA Policy matters most: three of the written amendments are aimed at it, and until we see it those three are written against our best reconstruction of what it says rather than its real words. OO 1352.5 came in on 10/30 and is the proof of what that buys: reading it turned a list of citations into a marked up order and found five things we had not recorded.
6. **Confirm whether the county has named Probation** as an agency that receives mandated child abuse reports. One paragraph of a drafted amendment depends on it.
7. **Put a name and a date against each of the 22 critical items.** The register has the columns and they are empty on purpose, because they are yours to fill.
8. **Approve rewriting the PREA Policy** instead of another round of patches, and put the two year review on a calendar.
9. **Produce the two attachments to OO 1352.5:** the Identity Preference Form and the document titled Ensuring Fairness and Respect for the LGBTQI. The form is the instrument two provisions of that order run on, so what it asks the youth decides whether those provisions work.

Where we stand

Read the Conflict line first. Not Addressed means a requirement is not written down yet. Conflict means a departmental document states a rule that contradicts the law or another departmental document. The second is the more serious of the two: it is already in staff hands, it is harder to defend, and it is usually cheaper to fix.

Status	Requirements		Priority	Requirements
Conflict	13		Critical	22
Not Addressed	21		High	40
Partial	43		Medium	17
Addressed	14		Low	14
Not Evidenced	2			

Not Evidenced means a document is referenced in a departmental policy but has not been produced to this review, so no finding is made either way.

What is in this package

Six documents, and four of them are policy. Every one is generated from the register or from a single source, so none is hand-maintained and none can drift out of step with the others. **Attachments B, C and D are the department's own orders with the recommended edits marked**, so they are meant to be opened in Word and worked on: use Review, then Accept or Reject, and the copy saved afterwards is the department's. Recommended wording is highlighted as well as tracked, because Word opens in Simple Markup by default and hides deletions. Switch to All Markup to see what comes out as well as what goes in. The other two documents are generated views: edits made in them are overwritten by the next build.

Tab	Document	Page	Who it is for
A	Management Brief	9	Administrators, managers, and anyone who has to decide something.
B	OO 1453 with the fixes marked	27	Policy revision, County Counsel, and anyone who wants to see the actual words change rather than read about it.
C	OO 1352, the provisions that change	34	Policy revision, classification staff, and County Counsel.
D	OO 1352.5 with the fix marked	40	Policy revision, and County Counsel.
E	Redlines, Changes 1 to 7	48	Policy revision, and County Counsel.
F	Staffing Plan Factors	70	Whoever answers the staffing question.

Attachment A. Management Brief

The document to brief from. Where the exposure is, how the liability runs, what the department already has right, and the fifteen recommended changes in three waves. Seven exposure items out of 91 requirements, one page each.

Start here. Page 3 is the entire review in five numbered points.

Attachment B. OO 1453 with the fixes marked

The Sexual Assault order itself, with the proposed amendments shown as Word tracked changes. Struck text is what comes out, underlined text is what goes in. Open it in Word, use Review, and accept or reject each change one at a time. Accepting them all leaves a clean amended order.

The base text is the order's own words, transcribed from the PDF produced to this review. Two paragraphs are amended: I.A.6 for the youth interrogation statutes (change 8) and I.A.9 for the child abuse reporting deadline (change 3). Three further defects are recorded in its notes and deliberately not amended, because the fix for those is not a change of wording. ***Read its Before adoption page first: one open legal question has to go to County Counsel before any of it is relied on.***

Attachment C. OO 1352, the provisions that change

The Classification order's amended provisions, shown as Word tracked changes the same way Attachment H shows OO 1453. Covers changes 1 and 6: rescinding the S-8 classification and its automatic single room rule, and separating the risk of being abusive from the risk of being victimised.

This one is not the whole order, and Attachment H is. *OO 1352 runs to twelve pages. It was read in full, but the PDF did not survive, so only the provisions quoted at the time are held. Six provisions carry real redlines because their words are the order's. Two are marked as described rather than quoted, carry no redline, and state the required action instead.* ***Upload the OO 1352 PDF again and a complete version can be built, the same way OO 1453 was.***

Attachment D. OO 1352.5 with the fix marked

The whole transgender and intersex order, four pages, with the single room rule at III.I struck and the replacement language inserted as real Word revisions. Six further findings from reading the order are recorded at the end and deliberately not amended.

Produced on 10/30, which is what turned this attachment from a list of citations into a redline. Reading it confirmed every section number the review had carried and turned up five things the review had not recorded, including two subparagraphs on strip searches that cannot both be complied with.

Attachment E. Redlines, Changes 1 to 7

The amended policy text for the seven changes correctable by amendment, with the legal authority for each and a note on what has to be confirmed before adoption.

Three of the orders amended here have not been produced to the review. For those, the struck text is a reconstruction of what the register describes rather than a quotation of the order, and each item says so on its face. ***Do not let any of it circulate as though the struck text were the order's real words.***

Attachment F. Staffing Plan Factors

The factors the federal standard requires a documented staffing plan to address.

The staffing finding cannot be called either way until rosters are produced. The state floor sits at the department's written ratio, so the gap may be documentation rather than staffing. That is a materially different conversation and it is cheap to settle.

How to use this package

Nobody needs to read all of it. By role:

- **Administrators and managers: Attachment A, and page 3 of it is the whole review in five numbered points.** The rest of A is the backup for each point, one page apiece. Twenty minutes.
- **Whoever owns policy revision: Attachment B**, the amended text for the first seven changes, then **Attachment C** for the full requirement by requirement record.
- **Supervisors: Attachment E**, one sheet printed double sided. Attachment D is the longer version behind it, read once in advance rather than during an incident, and Attachment F is the memo written after an incident is classified.
- **Whoever answers the staffing question: Attachment G.**

What is not in this package

Stated so the package is not mistaken for the whole file.

- **Six earlier documents** are part of this work and are not attached here: the master Policy Review Report, the Applicability Memo, the Liability Exposure Assessment, the Training Gap and Curriculum Plan, the Audit Evidence Request, and the Excel version of the register. They can be supplied on request. **The Liability Exposure Assessment carries its own handling warning and should route through County Counsel before it is circulated at all.**
- **Six documents the review asked for and has not received.** Several findings may close on production rather than on any remediation, so producing them is the cheapest work available: the PREA Policy itself, the separation order OO 1354, the Resident Orientation Handbook, the hiring procedure, the contractor and volunteer screening procedure, and staffing rosters with post assignments. OO 1352.5 came in on 10/30 and is the proof of what that buys: reading four pages turned a list of citations into the marked up order at Attachment D and found five provisions this review had never recorded.
- **The PREA Policy is the highest value of those.** It carries three of the thirteen conflicts and it is the document three of the drafted amendments at Attachment E are written against, which is why those three rest on a reconstruction of its wording rather than on the order's real words. It is the one document that would turn Attachment E into a fourth marked up order.
- **Training lesson plans are not built yet.** The curriculum analysis exists in one of the six earlier documents above. The all staff and supervisor lesson plans are the next build after the items under What we need are answered.

This package is a policy and standards analysis prepared for internal departmental use. It is not legal advice, and no part of it should be treated as a legal opinion. Statutory questions, and the records retention schedule in particular, route to County Counsel. Citations have been verified against the operative text rather than recalled, and where a source could not be reached from the review environment the affected statement says so rather than asserting more than was checked.

Generated document, drawn from gap register Revision 11. This copy is regenerated from source; edits made here are not carried forward.

PREA Compliance: Where We Stand

Management briefing

Sacramento County Probation Department
Youth Detention Facility

WORKING DRAFT. Not legal advice. Route to County Counsel before circulating outside the department.

Drawn from gap register Revision 11, 93 requirements assessed against 17 departmental documents.

Contents

The short version

Five things. Then the detail behind each one.

1. PREA applies to us. It covers county juvenile facilities. But there is no federal fine for a county and no one can sue us under PREA itself. So the standards are not the risk. They are the yardstick somebody else measures us with.

2. The risk is state law and getting sued. Title 15 writes PREA content into about ten sections, and BSCC inspects us against it every two years. And a 2024 law removed the deadline for suing over childhood sexual assault. A claim from a resident in our care today never expires.

3. We have the policies. The problem is what some of them say. We checked 91 requirements against 17 of our policies. Thirteen are not missing pieces. They are places where our own policy tells staff to do something the law does not allow, or tells them the opposite of what another one of our policies says. Those are the expensive ones, because a written wrong rule is evidence. Most are fixable by amending a paragraph.

4. Three of the thirteen put individual staff at risk, not just the County. Our child abuse reporting deadline is wrong in two documents. One order tells supervisors to question a youth without mentioning a law that took effect in 2021. Both can be fixed this quarter.

5. Seven of the fifteen fixes are already written and ready to review. The other eight need a decision from this room, not more analysis. That is the ask.

Does PREA actually bind us

This gets asked first every time, so it is settled here. The answer has two halves and the second one is the one that matters.

- **Yes, as a standard.** PREA covers local government confinement facilities, 34 U.S.C. 30309(7). Agency includes local units, 28 CFR 115.5. Subpart D covers juvenile facilities. DOJ guidance states the standards apply equally to locally operated facilities.
- **No, as a direct federal penalty.** The five percent grant penalty, 34 U.S.C. 30307(c)(2), runs through the governor's certification, which 28 CFR 115.501(b) limits to state executive branch facilities. The Attorney General's own overview states it does not encompass county facilities. There is no private right of action under PREA.
- **And that is exactly why we are exposed.** DJJ closed 06/30/2023, so no California juvenile facility sits inside any governor's certification. Counties are persons under 42 U.S.C. 1983, with no Eleventh Amendment immunity and no qualified immunity for the entity. Being county run is what creates the damages exposure rather than removing it.
- **California has not adopted a PREA audit requirement for juvenile facilities.** Both editions of Title 15 read for this project contain no PREA reference and no facility audit requirement. So nobody is coming to audit us. The exposure arrives as a BSCC inspection finding or as a lawsuit, not as an audit report.

Where we stand, by the numbers

91 requirements from 28 CFR Part 115 Subpart D and Title 15, assessed against the 17 departmental documents produced to this review. The counts below are read out of the register at build time, so this page cannot drift from it.

Status	Rows		Priority	Rows
Conflict	13		Critical	22
Not Addressed	21		High	40
Partial	43		Medium	17
Addressed	14		Low	14
Not Evidenced	2			

Read the Conflict row first. Not Addressed means we have not written it down yet. Conflict means we have written down the wrong rule. The second is worse: it is harder to defend, it is already in staff hands, and it is cheaper to fix. Not Evidenced means the document is referenced in another policy but has not been produced to this review, so no finding is made either way.

Where the real exposure is

Not 91 items. These seven. Each one is in the register with the policy language behind it. Each reads the same way: what our policy says, what the law says, what it costs us, the fix, and what we need from you.

1. Automatic single room housing for LGBTQI, transgender and intersex youth

Register rows 36, 37

What our policy says. OO 1352 II.M puts every LGBTQI youth in classification S-8. III.I.1 then says every S-8 youth gets a single room at all times. OO 1352.5 III.I does the same for every transgender and intersex youth.

What the rule says. 15 CCR 1352(e) says you cannot pull a youth out of general population, or put them in a single room, just because of who they are. It spells out the lawful alternative: decide case by case, or give a single room when the youth asks for one. 115.342(c) says the same. 15 CCR 1324(k) separately says our policy manual itself cannot contain a rule like this.

Why it costs us. This is the easiest finding anyone could make against us, for three reasons. **The dates.** The state rule is not new. It has been in force since April 2014. We created S-8 in December 2019 and kept it on a February 2020 revision. That is five and a half years after the rule existed. **Our own order convicts us.** The single room sentence for S-8 and the single room sentence for S-4 High are word for word identical. They are the only two in the whole order. S-4 High is the category for youth with documented sex offences. So we give LGBTQI youth the exact housing restriction we reserve for adjudicated sex offenders, and we give it to nobody else. **The order argues with itself.** II.M.1.a says go look at the transgender policy for housing. III.I.1 then decides housing anyway.

The fix. Changes 1 and 2, already written. Strike the automatic single room rule and replace it with the state rule word for word, including its own exception for a youth who asks for a single room. Make single occupancy something you decide and document, not something a label triggers. A fourth paragraph stops this coming back under a different letter.

What I need. Nothing. This one is ready to move.

2. The child abuse reporting timeline is wrong, in two documents

Register row 48

What our policy says. PREA Policy V.A.4 and OO 1453 I.A.9 both say we call Child Protective Services within 24 hours. OO 1453 repeated it on a December 2019 revision.

What the rule says. Penal Code 11166(a) says telephone immediately, or as soon as you practically can. The written report on form SS 8572 goes in within 36 hours.

Why it costs us. This one can get a staff member prosecuted, not just sued. The duty belongs to the person who formed the suspicion. No supervisor can get in the way of it. There are criminal penalties for not reporting. So a staff member who follows our written policy exactly is the one exposed. And our Code of Conduct states the rule correctly, so we cannot argue nobody here knew.

The fix. Change 3, written and staged. Fix both documents now. Replace both with a pointer to one new department wide General Order once it issues. Reading OO 1453 in full also showed the order only ever talks about sexual assault, so the new wording is keyed to the reporting trigger in the law instead. That fixes the deadline and the scope together.

What I need. Find out whether the county has named Probation as an agency that receives these reports. One paragraph of the draft depends on it and nobody has confirmed it.

3. The interrogation instruction omits a statute that took effect in 2021

Register row 91

What our policy says. OO 1453 I.A.6: the duty supervisor takes an initial statement from the victim and the suspect, and reads the suspect a Miranda warning before any questioning.

What the rule says. WIC 625.6, in force since January 2021, says a youth 17 or younger has to talk to a lawyer before a custodial interrogation and before giving up Miranda rights. The youth cannot waive that conversation. WIC 625.7, in force since July 2024, separately bars deception and psychologically manipulative questioning of a youth 17 or younger.

Why it costs us. Our order says nothing about either law. It was last revised in December 2019, before both. The practical cost is that a statement taken under our own order can sink the case it was meant to build, and a judge can weigh a deliberate violation against the supervisor's credibility as a witness. **One important qualifier, and it may matter a lot.** WIC 625.6(d) says the rule does not apply to a probation officer doing normal duties under three specific sections of the code. Those sections are about booking a youth in and deciding whether to hold them, not about questioning a youth over a new offence inside the facility. We think the exemption does not cover this. But we have found no court decision either way, and County Counsel should answer it before we rely on anything here.

The fix. Change 8, drafted today, and you have it as a tracked changes copy of the order. It splits the victim statement from the suspect statement, adds the lawyer consultation, writes the emergency exception narrowly and requires it to be documented, adds the ban on deception, and says plainly where a supervisor stops and an investigator starts.

What I need. Send WIC 625.6(d) to County Counsel. That one answer decides whether this is a violation we are carrying or a good practice we should adopt anyway.

4. We have no PREA Coordinator, and one of our own orders routes work to one

Register rows 2, 3

What our policy says. OO 1453 I.A.15 says the incident review report goes to the PREA Coordinator. We do not have one.

What the rule says. 115.311(b) requires an agency wide PREA Coordinator with real authority and real time for the job. 115.311(c) requires a compliance manager at each facility if we run more than one.

Why it costs us. Two problems, and the second is the bad one. The report has nowhere to go, so our incident review process ends at an empty chair. And the order is a **signed departmental document, dated December 2019, saying we need the role.** That is much harder to answer than simply never having mentioned it.

The fix. Change 8 in the master report. This is naming somebody and giving them the hours. It is not a drafting job.

What I need. Name a PREA Coordinator and a facility compliance manager. Nothing else is blocking this.

5. Nothing is written for the band of conduct that generates most incidents

Register rows 47, 54, 69

What our policy says. OO 1453 is titled Sexual Assault. Every duty in it is keyed to those words: the staff reporting duty, the CPS call, the incident review.

What the rule says. 115.361(a) requires staff to report sexual abuse **or sexual harassment**. 115.6 defines harassment to include repeated unwelcome comments of a sexual nature. Title 15 goes further than the federal rule in two ways: it counts coercion by manipulation, and it reaches residents watching other residents.

Why it costs us. Across three pages and fifteen items, nothing in OO 1453 reaches harassment, indecent exposure, or touching that is not called assault. So we have a solid response plan for the worst band and nothing written for the band that produces most of the incidents. **That is where supervisors are making it up as they go**, and improvising is what later reads as not caring. It is also the band where, if both residents are 18 or over, there is no outside reporting duty at all. The only control is the one we write.

The fix. Change 12, broaden OO 1453, plus change 10 on grievances. The supervisor tier chart and the classification card already do this job day to day and can carry it while the order is amended.

What I need. Decide who investigates youth on youth cases in this band. It is not written down anywhere, and it is the one answer the supervisor materials cannot supply for themselves.

6. Three retention rules govern the same records, against a claim with no deadline

Register row 59

What our policy says. Internal Affairs XI.C.1 keeps complaint and investigation records five years. PREA Policy XVIII.B keeps sexual abuse case records ten years.

What the rule says. 115.371(j) says keep them as long as the alleged abuser is here, plus five years.

Why it costs us. Any one of the three can be read as permission to destroy a record the other two require us to keep. Put that against the 2024 law: for childhood sexual assault on or after January 1 2024, there is no deadline to sue, ever. A claim from a resident today has no expiry. The law also allows treble damages where there has been a cover up, and destroying records on our own written schedule is exactly the fact pattern that argument is built from.

The fix. Change 7, written. One schedule, reconciled. Paragraph 3 is a hold on destruction for anything on or after January 1 2024, because no fixed number of years can cover a claim with no deadline.

What I need. County Counsel sets the schedule. A policy revision cannot do it.

7. The governing PREA policy has not been revised since 2013

Register row 74

What our policy says. Our PREA Policy says effective and revised April 25, 2013. The Internal Affairs policy dates to 2011. The intake document has no date at all and still refers to CYA.

What the rule says. 15 CCR 1324 says the policy manual gets an administrative review at least every two years, and gets updated when it needs it.

Why it costs us. This is the finding that needs no argument. The policy predates the January 2019 Title 15 rewrite that added four sections we now have to comply with. It predates the room confinement law. It predates a Penal Code section being renumbered. **On a BSCC inspection this is proved by reading the cover page.** And the policy carries three of the thirteen conflicts by itself, so the review is not a formality.

The fix. Change 3 fixes the reporting standard. Beyond that the policy is worth rewriting in the order an auditor scores it, rather than patching it item by item.

What I need. Approve the rewrite instead of another round of amendments, and put the two year review on a calendar so we do not end up here again.

One thing we cannot yet call either way

Worth stating plainly, because it is the largest single unknown in the register and it is not a finding yet.

- **Staffing ratios.** OO 1321 states 1:10 waking and 1:30 sleeping. 115.313(c) has required 1:8 and 1:16 since 10/01/2017. 15 CCR 1321(h)(1) sets the state floor at 1:10 and 1:30, and 15 CCR 1301 permits exceeding it.
- So the written ratio is lawful under state law and below the federal standard. **Whether there is an actual gap depends on rosters, which have not been produced.** We may well be staffing above the written figure already, in which case the finding is a documentation problem rather than a staffing one. That is a materially different conversation and it is cheap to settle.
- Recommended change 9 is blocked until rosters and post assignments are produced. 115.313(a) also requires a documented staffing plan, which does not appear in the documents reviewed regardless of what the rosters show.

How the liability actually runs

Nine theories are set out in the exposure assessment. Four of them carry the weight, and none of them is a PREA claim.

- **Section 1983, with Monell.** Counties are persons under 42 U.S.C. 1983, with no Eleventh Amendment immunity and no qualified immunity for the entity, Owen v. City of Independence, 445 U.S. 622. A written policy is the clearest form of the official policy Monell, 436 U.S. 658, requires. **A conflict row is therefore not just a compliance defect. It is the element of the claim.**
- **Failure to protect, on an objective standard.** Castro v. County of Los Angeles, 833 F.3d 1060 (9th Cir. 2016) (en banc) sets an objective standard for a pretrial detainee failure to protect claim, which is more readily met than the subjective test under Farmer v. Brennan, 511 U.S. 825. Kingsley v. Hendrickson, 576 U.S. 389 runs the same direction.
- **Mandatory duty liability, Government Code 815.6.** Liability attaches where an enactment imposes a mandatory duty, and enactment includes a regulation under Government Code 810.6. **Title 15 is a regulation.** That is the route by which a BSCC standard becomes a damages claim rather than an inspection finding. Government Code 818.2 is the County's defense and it does not cover everything.
- **No deadline, and no claim filing requirement.** AB 452 eliminated the limitations period for childhood sexual assault occurring on or after 01/01/2024, CCP 340.1. For earlier incidents CCP 352 tolls during minority. Government Code 905(m) exempts these claims from the Government Claims Act presentation requirement, so the usual six month notice is not a filter. CCP 340.1 provides treble damages where there is a cover up.
- **And the state side, which arrives sooner.** WIC 209 requires a BSCC inspection every two years. Title 15 embeds PREA content at 1324(n), 1350.5, 1352(e) and (f), 1352.5, 1353(c), 1360(g), 1361(h), 1452 and 1453. Several of the thirteen conflicts are findable on the face of the policy manual without any incident at all.

What the department is already doing right

This matters for two reasons. It is true, and a brief that only lists failures gets discounted. Several of these are stronger than the standard requires.

- **OO 1352.5 on transgender and intersex youth is comprehensive**, and its monthly reassessment exceeds the twice yearly federal minimum. The categorical housing provision is the defect; the rest of the order is not.
- **OO 1354.5 on room confinement is the newest policy in the set by nearly three years and it shows.** It supplies the four hour review cycle, documented supervisor and manager authorization, and the prohibition on punitive confinement. Earlier revisions of this review scored the WIC 208.3 interaction as unaddressed and that was wrong.
- **Isolation is not available as a disciplinary sanction here.** OO 1390/1391 III omits it from the consequences list and OO 1354.5 I.C.1 prohibits confinement for punishment. The department has excluded it outright, which is a stronger position than complying with the isolation safeguards would be. This is worth saying out loud rather than leaving to inference.
- **OO 1453 is a coordinated response plan in all but name** for the serious band: first response, notification, evidence preservation, the forensic exam, the advocate right, the incident review. Earlier revisions scored 115.364 and 115.365 as gaps and that was wrong too. The problem with the order is scope, not quality.
- **The register's own citations to departmental orders have held up.** Each time an order has been produced and read in full, OO 1352 and then OO 1453, every section number the earlier review recorded was confirmed verbatim. That is worth knowing about the reliability of the rest of it.

What it takes to fix, in three waves

Fifteen recommended changes. They are not equivalent, and sequencing them wrongly wastes a revision cycle.

Wave 1. Amend now. Drafted and ready to review.

Changes 1 to 7. Redlines exist for all seven, with the amended text written out and an authority line for each. Three of the orders they amend have not been produced to this review, so for those the struck text is a reconstruction of what the register describes rather than a quotation, and every item says so on its face.

- 1. Rescind the S-8 single room mandate, OO 1352 II.M and III.I
- 2. Convert OO 1352.5 III.I to a presumptive, documented individualized outcome
- 3. Correct the mandated reporting standard, PREA Policy V.A.4 and OO 1453 I.A.9
- 4. Correct cross facility notification from 14 days to 72 hours, PREA Policy V.A.7
- 5. Rewrite the false allegations provision to a bad faith standard, PREA Policy XIV.A
- 6. Delete the S-4 victim to perpetrator inference, split the code, add PC 287 and 289
- 7. Adopt a single reconciled records retention schedule

Wave 2. Needs a decision from this room, not more analysis.

These are blocked on a designation, an allocation, or a document we have asked for and not received. No further review will unblock any of them.

- 8. Designate a PREA Coordinator and a facility compliance manager
- 9. Verify staffing against 1:8 and 1:16 and build the 115.313(a) staffing plan, blocked on rosters
- 15. Reduce hiring, contractor screening and staff reporting to writing, blocked on whether a child abuse registry check occurs
- Produce OO 1354 on separation. It is the highest value outstanding document: OO 1354.5 defines separation to include protective custody and then regulates only room confinement, so the placement 115.342(b) and 115.368 actually govern is the one with the fewest written safeguards.

Wave 3. Build. Real work, and it follows waves 1 and 2.

Drafting projects rather than amendments. Each needs an owner and a date.

- 10. Rebuild the PREA elements of OO 1361 on grievances: emergency track, external reporting, third party filing, private staff reporting, extension outer bound
- 11. Add the data analysis and corrective action loop, 115.387 and 115.388
- 12. Complete the incident review and broaden OO 1453, 115.364(b), 115.365, 115.386
- 13. Add retaliation monitoring, 115.367
- 14. Add notification duties: family, counsel, and outcome to the resident, 115.361(e) and 115.373
- A new department wide General Order on child abuse and neglect reporting, which is stage two of change 3
- Rewrite the PREA Policy to Subpart D order, so each provision maps to what an auditor scores
- Tier 1 all staff and supervisor lesson plans

What I need from you

These are the things that cannot move until somebody decides. Shortest first.

1. Name a PREA Coordinator and a facility compliance manager. Our own order already sends work to that position.

2. Decide who investigates youth on youth cases below the level of sexual assault. It is not written down anywhere.

3. Send WIC 625.6(d) to County Counsel. It decides whether the interrogation finding is a violation we are carrying or a good practice we should adopt anyway.

4. Give us the rosters and post assignments. They settle whether the staffing question is a real gap or a paperwork gap.

5. Produce five documents: the PREA Policy itself, OO 1354 on separation, the resident handbook, the hiring procedure, and the contractor and volunteer screening procedure. Some findings close on handing the document over, with nothing else to fix. The PREA Policy matters most: three of the written amendments are aimed at it, and until we see it those three are written against our best reconstruction of what it says rather than its real words. OO 1352.5 came in on 10/30 and is the proof of what that buys: reading it turned a list of citations into a marked up order and found five things we had not recorded.

6. Confirm whether the county has named Probation as an agency that receives mandated child abuse reports. One paragraph of a drafted amendment depends on it.

7. Put a name and a date against each of the 22 critical items. The register has the columns and they are empty on purpose, because they are yours to fill.

8. Approve rewriting the PREA Policy instead of another round of patches, and put the two year review on a calendar.

9. Produce the two attachments to OO 1352.5: the Identity Preference Form and the document titled Ensuring Fairness and Respect for the LGBTQI. The form is the instrument two provisions of that order run on, so what it asks the youth decides whether those provisions work.

This brief is a policy and standards analysis prepared for internal use. It is not legal advice. Every statutory question in it, and the retention schedule in particular, routes to County Counsel before anything issues. Findings are stated against the documents produced to this review: where a practice is not in the documents, the finding says it does not appear in the documents reviewed, which is not the same as saying it is not done.

Generated document, drawn from gap register Revision 11. This copy is regenerated from source; edits made here are not carried forward.

OO 1453, Sexual Assault, Title XV 1453

Proposed amendments, shown as tracked changes

Sacramento County Probation Department, Youth Detention Facility

Effective 04/25/2013. Last revised 12/09/2019. Approved by Chief Deputy Dave Semon.

How to read this. The text below is the order as it stands today. Struck text is proposed for deletion and underlined text is proposed to replace it. In Word, use Review, then Accept or Reject, one change at a time. Accepting every change leaves a clean amended order.

The base text below is the order's own words, transcribed from the PDF produced to this review. The PDF is a scan with no text layer, so it was rasterized at 200 dpi and read as images. Typographical errors in the order are preserved, including "written reported" at paragraph 9, which is the order's and not a transcription slip. Anything marked as an insertion is proposed text and is not departmental policy.

NOT LEGAL ADVICE. A working draft for departmental review. Route to County Counsel before adoption. See the notes at the end, which state what has to be confirmed first.

What is proposed, and where it comes from

Two paragraphs of this order are amended. Each traces to a numbered change in the briefing packet and to the register rows behind it.

Paragraph I.A.6. Change 16. Bring the initial statement into line with WIC 625.6 and 625.7 *Register row 91.*

Paragraph I.A.9. Change 3, stage one. Correct the mandated reporting standard *Register row 48.*

Three further defects in this order are recorded in the notes at the end and are deliberately not amended here, because the fix is not a change of wording.

OO 1453, Sexual Assault, Title XV 1453

Purpose and Scope

The Sacramento County Probation Department is committed to providing a safe, humane, secure environment, free from sexual misconduct. The Department maintains a zero tolerance for sexual misconduct.

A sexual assault that occurs in the Youth Detention Facility shall be given top priority for investigation. Timeliness is crucial when reporting and investigating sexual assaults. Staff shall not hesitate to report any such findings of sexual misconduct.

All employees are responsible for protecting youth in their custody/care and are responsible for the immediate and confidential reporting to the duty supervisor any information and/or suspicion that indicates a youth is being, or has been sexually assaulted.

Affected Personnel

All Sworn Personnel - YDF

Effective Date

December 9, 2019

Authority

Prison Rape Elimination Act

I. Guidelines

A. Once an employee becomes aware a sexual assault has occurred or allegedly occurred, the following protocol shall be observed when treating the victim, preserving the evidence and contacting local law enforcement.

1. Separate the victim and suspect immediately and ensure that the victim and suspect have no contact with one another (no access to toilet – see #5 below).
2. Immediately notify the Supervisor on duty. The Supervisor on Duty shall notify a facility Chief Deputy or Assistant Chief Deputy.
3. Unit staff shall protect the crime scene (youth's room/shower area/laundry room, etc.) by sealing off the area and not allowing access by other staff or youth.
4. Prevent the victim and suspect from showering.
5. If possible, keep the victim and suspect from using the bathroom. If they use the bathroom, the toilet tissue shall be collected as evidence.
6. The duty supervisor shall take an initial statement from the ~~victim and suspect. All suspects involved in a sexual assault shall be read a "Miranda Warning", prior to any questioning.~~alleged victim. A statement shall be taken from a suspect only in accordance with subparagraphs a through f below.
    a. Before any custodial interrogation of a suspect who is 17 years of age or younger, and before any waiver of Miranda rights by such a suspect, the youth shall consult with legal counsel in person, by telephone, or by video conference. That consultation may not be waived by the youth, by a parent or guardian, or by any employee of the Department.

b. Subparagraph a does not apply where the duty supervisor reasonably believes the information sought is necessary to protect life or property from an imminent threat, and the questions asked are limited to those reasonably necessary to obtain that information. Any reliance on this subparagraph shall be documented in the incident report, stating the threat believed to exist and every question asked.

c. No employee shall use threats, physical harm, deception, or psychologically manipulative interrogation tactics against a suspect who is 17 years of age or younger.

d. A suspect who is 18 years of age or older shall be read a Miranda warning prior to any custodial interrogation. Subparagraphs a and c are keyed to age by statute and do not apply to such a suspect.

e. The statement authorized by this paragraph is limited to what each youth says about the incident. It is not an investigation. Canvassing other youth or staff as witnesses, testing whether an allegation is true, and taking any formal statement are the functions of an investigator who has received the specialized training required for sexual abuse investigations, and of the Sheriff's Department once notified under paragraph 8.

f. A youth from whom a statement is taken under this paragraph may have a victim advocate or support person of their choosing present, on the same terms paragraph 13 provides for investigatory interviews.

Change 16. See the notes at the end.

7. When interacting with the alleged victim of sexual assault, staff are expected to be professional and display sensitivity towards the victim as the trauma may affect them both physically, emotionally and mentally.

8. If after initial inquiry it is believed a sexual assault occurred, the Sheriff's Department will be notified immediately by the duty Supervisor in order to take a report.

9. All incidents of ~~sexual assault shall be reported to Child Protective Services verbally within 24 hours. A formal written reported shall be completed and forwarded to Child Protective Services within 36 hours of receiving information concerning the incident.~~suspected child abuse or neglect, including any sexual abuse or sexual assault of a resident, shall be reported by the employee who formed the suspicion to an agency specified in Penal Code section 11165.9 immediately, or as soon as is practicably possible, by telephone, with a written follow-up report on Department of Justice form SS 8572 within thirty-six hours of receiving the information concerning the incident. The duty imposed by this paragraph is individual and may not be delegated. Notifying the duty supervisor or any departmental office does not satisfy the duty and does not delay it.

Change 3. See the notes at the end.

10. The reporting/investigating officer (usually a Supervisor) shall brief the responding Sheriff's officers upon their arrival. Sheriff's officers will be provided with a room to conduct any interviews.

11. If the Sheriff's Department, C.S.I. (Crime Scene Investigations) or detectives cannot respond immediately, the duty supervisor may need to collect evidence. The following protocol shall be followed:

a. Photograph crime scene.

b. After putting gloves on, collect evidence, clearly marking date, time, location, ownership and description of item.

c. Seal all evidence bags and envelopes, log items and place evidence in the evidence locker located in the Property Room at Intake/Booking.

12. Non-consensual sexual assault suspects shall undergo a “suspect rape exam”, which shall be the responsibility of the Sheriff's Department as the investigating agency.

13. All identified victims involved in a non-consensual sexual assault shall be transported by a Transportation Officer, or designated staff appointed by the duty Supervisor (taking gender into consideration), to a local medical facility for an evidentiary exam. Pursuant to Section 264.2 of the California Penal Code, a sexual assault victim has the right to have a victim advocate and/or victim support person, of the victim's choosing, present during their medical examination. In most cases, the victim advocate will be from a local Rape Crisis Center. Sheriff's Officers will follow Youth Detention Facility staff to the Med Center and fill out all necessary paperwork. Pursuant to Section 679.04, a sexual assault victim has the right to have a victim advocate and/or victim support person, of the victim's choosing, present during all investigatory interviews conducted by law enforcement, the district attorney, or defense counsel.

14. If a consensual sex act occurred, all discovery and investigative reports are to be forwarded to the Supervising District Attorney and the Sacramento Sheriff's Sexual Assaults Unit.

15. At the conclusion of the sexual assault investigation, an incident review shall be conducted by upper management officials, with input from supervisors, investigators, and medical or mental health practitioners. A report shall be generated and forwarded to the PREA coordinator and Department Chief.

Notes on each change

Paragraph 6 *(Change 8)*

The order as written directs a Miranda warning and says nothing about Welfare and Institutions Code section 625.6, which since 01/01/2021 requires a youth 17 or younger to consult counsel before a custodial interrogation and before any Miranda waiver, and provides that the consultation may not be waived. The order was last revised 12/09/2019. Subparagraph c addresses a second statute the order also predates, section 625.7, effective 07/01/2024, which bars threats, physical harm, deception and psychologically manipulative tactics in the custodial interrogation of a youth 17 or younger.

Paragraph 9 *(Change 3)*

Penal Code section 11166(a) requires the telephone report immediately or as soon as is practicably possible, not within 24 hours. The same error appears in PREA Policy V.A.4. The insert is drafted to the CANRA trigger rather than to the words sexual assault, because conduct reportable under Penal Code 11165.1(b)(4) and (b)(5) is not necessarily characterised as assault, and the order's scope would otherwise still miss it.

Paragraph 15 *(No amendment proposed)*

No amendment is proposed here, because the defect is not in the words. The order directs the incident review report to a PREA coordinator, and the Department advises the position does not exist. The fix is recommended change 8 in the master report, designating the role. Until then this paragraph routes a required report to nobody. Register row 2.

The order as a whole *(No amendment proposed)*

Every operative duty in this order is keyed to sexual assault: the staff reporting duty in the Purpose and Scope paragraph, the Sheriff notification at paragraph 8, the incident review at paragraph 15. Nothing in three pages reaches sexual harassment, exposure, or touching not characterised as assault, which is the band that generates most incidents. Broadening the order is recommended change 12 and is not drafted yet. Register rows 47, 54 and 69.

Before adoption

The base text is the order's own words. It was transcribed from the PDF produced to this review, which is a scan with no text layer, so it was rasterized and read as images. Check the transcription against the signed original before this is adopted or circulated outside the department.

The gating legal question on paragraph 6 is section 625.6(d), and it must go to County Counsel before adoption. Subdivision (d) provides that the consultation requirement does not apply to a probation officer acting in the normal performance of duties under Welfare and Institutions Code sections 625, 627.5 or 628. Those sections concern taking a minor into temporary custody, advising a minor on delivery to a probation officer, and the decision to release or detain. Taking a statement about a new offence alleged to have occurred inside the facility does not obviously fall within any of them, but the question is genuinely open and this review has found no case deciding it. If Counsel concludes that subdivision (d) covers this activity, the amendment remains sound practice but is not legally compelled, and the finding behind it is a recommendation rather than a conflict.

Subparagraph b is written narrowly on purpose. The imminent threat exception in section 625.6(c) is a real exception and staff need it, but an exception with no documentation requirement becomes the rule. Requiring the threat and every question to be written down is what keeps it narrow.

Subparagraph f exceeds what the statute requires and is a policy choice, not a legal obligation. Penal Code section 679.04, which paragraph 13 correctly recites, attaches the advocate right to investigatory interviews conducted by law enforcement, the district attorney or defense counsel. It does not on its face reach the initial statement this paragraph assigns to facility staff. As the order stands, the one interview conducted by departmental staff is the only one in the sequence with no advocate right attached. Subparagraph f closes that by departmental policy. Strike it if the Department does not want to extend the entitlement.

Section 625.7 is cited by section number and effective date only. This review confirmed its content and its 07/01/2024 effective date by search, and could not read the statute from primary source, because network egress from this environment is restricted. The bill that added it has not been confirmed and is deliberately not cited. Verify both before adoption.

Paragraph 9 is stage one of change 3. Stage two replaces it with a cross-reference once the department wide General Order on child abuse and neglect reporting issues. The same correction is needed in PREA Policy V.A.4, which has never been produced to this review.

Drawn from gap register Revision 11. Accepting or rejecting the tracked changes in Word is the intended way to use this file, and the copy you save afterwards is the department's.

OO 1352, Classification

The provisions that change, shown as tracked changes

Sacramento County Probation Department, Youth Detention Facility

Effective 12/09/2019. Revised 02/27/2020.

This is not the whole order. It is the provisions that change. The order runs to twelve pages and was produced and read in full in Revision 9, but the PDF did not survive the container it was read in. What survives is every provision quoted at the time, word for word, and those are reproduced below. Everything between them is not reproduced and is marked as such. Each provision says whether its text is the order's own words or a description from the register, and a redline is shown only where the words are the order's.

How to read this. Struck text is proposed for deletion and underlined text is proposed to replace it. In Word, use Review, then Accept or Reject, one change at a time.

Eleven of the order's twelve pages are not reproduced here. That includes the Purpose and Scope paragraph, the S-1, S-2, S-3, S-5, S-6 and S-7 criteria, the III.E housing matrix in full, the III.D deviation rules, section IV on legal status changes, and section V. None of them is amended by changes 1 or 6, but their absence is why this document cannot be handed over as the order. **To produce a complete tracked changes copy of OO 1352, the PDF has to be uploaded again.** That is a single step and it would take about an hour.

NOT LEGAL ADVICE. A working draft for departmental review. Route to County Counsel before adoption.

What is proposed, and where it comes from

Two numbered changes touch this order. Each provision below names the change it belongs to and the register rows behind it.

II.M. Change 1. Rescind the S-8 classification *Register row 36.*

III.I.1. Change 1. Strike the automatic single room mandate *Register row 36.*

III.E, the housing matrix, every S-8 entry. Change 1. Remove S-8 from the housing matrix *Register row 36. Words not held, no redline shown.*

II.F.2, the note. Change 6. Delete the victim to perpetrator inference *Register row 34.*

II.F.2.d. Change 6. Delete the same inference where it appears as a lettered criterion *Register row 34.*

II.G.1, the enumerated offences. Change 6. Add the missing Penal Code sections and split the code *Register row 34.*

II.H. Change 6. Separate victimization risk into its own code *Register row 34.*

II.C.3. Conforming change. Delete the closed institution reference *Register row 34. Words not held, no redline shown.*

The provisions

II.M Change 1

Verified in Revision 9 against the order as produced. The order's own words, including subparagraph a.

~~Any Lesbian, Gay, Bisexual, Transgender, Questioning and Intersex (LGBTQI) youth to further protect against victimization/discrimination within the unit setting. a. See the Transgender and Intersex Youth Policy for housing guidelines.~~Prohibited bases for separation and single occupancy assignment.

1. Staff shall not separate a youth from the general population, and shall not assign a youth to a single occupancy room, based solely on the youth's actual or perceived race, ethnic group identification, ancestry, national origin, color, religion, gender, sexual orientation, gender identity, gender expression, immigration status, mental or physical disability, or medical condition.
2. Nothing in this section prohibits placing a youth in a single occupancy room at the youth's own specific request, or in accordance with the separation provisions of this order, OO 1354, and OO 1354.5. A request under this paragraph shall be documented in JPIP with the date, the substance of the request, and the staff member who received it.
3. Where a youth's sexual orientation, gender identity, or gender expression is known to staff, that information shall be used as one input to the individualized housing determination required by OO 1352.5 III.B and III.F. It shall not by itself determine a housing assignment, a program assignment, or a classification code.
4. No classification code shall be created or maintained whose assignment carries an automatic housing consequence on any basis listed in paragraph 1.

III.I.1 Change 1

Verified in Revision 9. This sentence and III.E.1.a, which applies to S-4 High, are word for word identical and are the only two provisions in the entire order imposing that mandate.

~~Any youth classified S-8 will require a single room (no roommate) housing at all times.~~Housing for a youth whose sexual orientation, gender identity, or gender expression is known to staff shall be determined individually under OO 1352.5 III.B and III.F, and documented. No housing consequence follows automatically from that status.

III.E, the housing matrix, every S-8 entry Change 1

The matrix itself was not quoted into the register when the order was read, so its words are not held and no redline can honestly be shown for it. The action required is nonetheless clear and is stated below.

No redline shown. Remove every S-8 row and column from the III.E housing matrix, and remove S-8 from the JPIP classification code table, the classification worksheet, and any intake screen that offers it, so the code cannot be assigned after the order is amended. Separately, identify every youth currently carrying S-8 and re-determine housing individually under OO 1352.5 III.B and III.F within a stated number of days, documenting each outcome. Without that step the order changes and the practice does not.

II.F.2, the note Change 6

Verified in Revision 9. Bolded in the original.

> ~~Youth with a history of victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies.~~A youth's history of sexual victimization shall be assessed and recorded as a risk of victimization under II.H. It shall not be treated as an indicator that the youth is likely to be sexually abusive toward others, and it shall not be used to assign a code under II.G.

II.F.2.d Change 6

Verified in Revision 9. ***This one was missed by the redline as first drafted.*** *Striking the note alone leaves the defect in force, because the same inference is also a lettered criterion sitting alongside three abusiveness criteria.*

> ~~d. History of victimization related to sexual abuse or a sexual offense;~~

II.G.1, the enumerated offences Change 6

Verified in Revision 9. The enumeration is complete at II.G.1 plus II.G.3 (rape, 261 PC, all subdivisions). ***Penal Code 287 and 289 are both absent and neither was flagged before Revision 9.*** *243.4, 264.1, 285 and 647.6 are absent as well. The inserted list matches the one drafted at change 6 in the redlines, so the two documents propose the same amendment. They did not at first: this document named only 287 and 289 while the redline named six additions, and the mismatch was found in review.*

> a. Sodomy (286 PC); b. Lewd or lascivious acts with child under 14 (288 PC, all sub-divisions); c. Unlawful sexual intercourse with a minor (261.5 PC); d. Oral copulation (287 PC, formerly 288a, renumbered by SB 1494 effective 01/01/2019); e. Continuous sexual abuse of a child (288.5 PC); f. Sexual penetration (289 PC); g. Sexual penetration by a person confined in a state hospital or custodial facility (289.6 PC); h. any successor or equivalent statute to those listed.
>
> **S-4A.** Assign S-4A, risk of being sexually abusive toward other youth, where the youth has a sustained petition, conviction, or documented finding for an offense listed above, or has documented sexually aggressive or sexually coercive conduct toward another person while in custody, in placement, or in the community, whether or not it resulted in a petition. The basis shall be recorded in JPIP with the source of the information and the date.

II.H Change 6

II.H.2 verified in Revision 9. It places perpetrator conduct in the same S-4 Low tier as II.H.3 and II.H.4, both of which are victimization criteria. II.H.3 makes being the victim of a CPS referral relative to sexual abuse a criterion, so the order uses the same fact protectively here and as an abusiveness indicator at II.F.2. Same fact, opposite uses, one order.

> Sexually inappropriate acting out in front of other youth or staff (i.e., masturbation in front of others, exposing genitals, or continued sexual comments for the purpose of arousal), which shall be assessed under II.G as abusiveness rather than under this section.

S-4B. Assign S-4B, risk of being sexually abused by other youth, where screening under OO 1350.5 identifies the youth as at risk of sexual victimization, including prior sexual victimization whether or not it occurred in custody.

i. An S-4A assignment and an S-4B assignment are independent. A youth may carry both, one, or neither, and each shall be assessed, coded, and documented separately.

ii. Information obtained under this section shall be used only to inform housing, bed, education, and program assignments, and to determine appropriate services and supervision. It shall not be used to discipline the youth or to justify a more restrictive placement than the individualized determination supports.

II.C.3 Change 6

The register records that II.C.3 references a pending commitment to the Division of Juvenile Justice, verified in Revision 9, but the surrounding sentence was not quoted, so no redline is shown.

No redline shown. Delete the reference to a pending commitment to the Division of Juvenile Justice. DJJ closed 06/30/2023 under SB 823. Section IV.A carries a second DJJ reference, used as the worked example of a legal status change, and needs replacing with a current example at the same time.

Before adoption

This document shows the provisions that change, not the order. It cannot be circulated as a copy of OO 1352, and it is not a substitute for amending the order itself. Upload the PDF and a complete tracked changes version can be built the same way the OO 1453 one was.

Two provisions carry no redline because their words are not held. The III.E housing matrix and II.C.3 are marked as described rather than quoted, and each states the action required instead of showing struck text. Do not let either be read as though the wording had been checked.

Change 1 replaces II.M in place rather than striking it, so the balance of section II does not need renumbering. The replacement tracks the 15 CCR 1352(e) list and carries the regulation's own carve-out, single occupancy at the youth's specific request, documented. Paragraph 4 is the one that stops S-8 reappearing under a different letter.

The operational half of change 1 is not in the text. Removing the code from the order does nothing for a youth already carrying it. Re-determining housing for every current S-8 youth, within a stated number of days and documented, is what makes the amendment real.

Penal Code 261.5, 288.5 and 289.6 in the S-4A offence list are the drafter's judgment, not sections the order enumerates and not sections this review has verified as the right additions. Only 287 and 289 are confirmed omissions, recorded against the order's own enumeration at II.G.1 and II.G.3. The other three come from the drafted amendment at change 6 and carry the same status there. Confirm all three with County Counsel, or strike them and keep the successor-statute catch-all, which is what stops the next renumbering reopening the gap that 287 left.

This review found the Purpose and Scope paragraph of OO 1352, PREA Policy III.E, and OO 1352.5 III.H already state the correct rule. The amendment brings II.M and III.I into line with three provisions the department has already written correctly, which is worth saying when the change is put to anyone.

Drawn from gap register Revision 11. Accepting or rejecting the tracked changes in Word is the intended way to use this file, and the copy you save afterwards is the department's.

OO 1352.5, Transgender and Intersex Youth, Title XV 1352.5

The order, with the proposed amendment as tracked changes

Sacramento County Probation Department, Youth Detention Facility

Effective March 1, 2019. Approved by Dave Semon. Authorized by signature dated 5/2019.

The base text below is the order's own words, transcribed from the four page PDF produced to this review on 10/30. The PDF is a scan with no text layer and was rasterized at 200 dpi and read as images. Struck text is proposed for deletion and underlined text is proposed to replace it. Everything not marked is the order as it stands.

How to read this. Struck text is proposed for deletion and underlined text is proposed to replace it. In Word, use Review, then Accept or Reject, one change at a time. Accepting every change leaves a clean amended order. One provision is amended, III.I, under change 2 of the briefing packet. Six further findings are recorded at the end and deliberately not amended.

NOT LEGAL ADVICE. A working draft for departmental review. Route to County Counsel before adoption.

Transgender and Intersex Youth – Title XV 1352.5

Purpose and Scope. The Sacramento County Youth Detention Facility (YDF) is dedicated to ensuring respectful and equitable treatment of all transgender and intersex youth, by creating a safe environment for all youth, and ensuring all youth have equal access to all available services, care and treatment.

Affected Personnel. All Sworn Personnel-YDF

Authority. Title 15 – 1352.5

Effective Date. March 1, 2019

I. Definitions

Transgender: A youth whose gender identity different from the youth's assigned sex at birth.

A. A transgender girl (Male to Female or MTF) is someone whose birth sex was male but who understands herself to be female.

B. A transgender boy (Female to male or FTM) is someone whose birth sex was female but who understands himself to be male.

Intersex: A person who's sexual or reproductive anatomy or chromosomal pattern does not fit typical definitions of male or female.

II. Guidelines

A. Staff shall respect every youth's gender identity, and regardless of the youth's legal name, shall refer to a youth by last name and preferred gender pronoun. Staff may prohibit the use of gang or slang names or names that otherwise compromise facility operation as determined by a Supervisor, and shall document any decisions made on this basis.

B. Staff shall permit youth to dress and present themselves in a manner consistent with their gender identity, and shall provide the youth with the facility's undergarments consistent with their gender identity.

C. Facility Administrators shall ensure transgender and intersex youth have access to medical and behavioral health providers qualified to provide care and treatment to transgender and intersex youth.

D. Staff shall make every effort to ensure the safety and privacy of transgender and intersex youth when the youth are utilizing the bathroom, shower, or dressing, and undressing.

III. Housing

A. Probation staff shall make an individualized assessment during the admission process (see Admission Policy) and complete the Identity Preference Form for each youth at the time of classification, when considering housing unit placement. Transgender youth may be identified during admission based on:

1. A youth's statements;
2. A youth's request to be called by a name that is not traditionally associated with his or her birth sex.
3. Any statements in arrest reports indicating the youth may be transgender or intersex.

B. Staff may not automatically house a youth according to the youth's external anatomy, and shall document the reasons for any decision to house youth in a unit that does not match the youth's gender identity.

C. Staff shall consider the youth's preferences, as well as any recommendations from the youth's health or behavioral health provider.

D. The safety and well-being of all the youth shall be the primary concern when staff is deciding where to place the transgender/intersex youth within the housing unit.

E. Staff shall consider the youth's background, age, developmental status, sophistication, social skills, charges, behavioral history and the factors that might influence the youth's adjustment and contribute to an overall safe and successful experience for the youth, as well as all other youth in the unit.

F. Housing decisions for transgender and intersex youth shall be based on the youth's individualized needs and should prioritize the youth's emotional and physical safety while considering the youth's perception of where the youth will be most secure. Housing determination will be documented in the JPIP under the classification comments section, and will include the date and justification.

G. Placement and program assignment of transgender or intersex youth will be assessed on a monthly basis or as needed.

H. Staff shall not consider a youth's sexual orientation or gender identity as a reason to isolate or withhold program options; however, staff may consider the youth's past and present behavior (i.e.: past or present sexual advances, sexually acting out).

III.I. Change 2. Convert the single room rule to a presumptive, documented outcome Register rows 36, 37, 75.

I. ~~All transgender and intersex youth shall be provided a single room in order to ensure their privacy and safety.~~Room assignment for a transgender or intersex youth shall be determined under subparagraphs 1 through 5 below.

1. The room assignment of a transgender or intersex youth shall be determined individually under III.B and III.F. It shall not be determined by the youth's status as transgender or intersex.
2. Single occupancy housing is the presumptive outcome of that determination, and the presumption is overcome where the individualized determination supports shared housing consistent with the youth's own perception of where the youth will be most secure. The determination shall be revisited at each reassessment required by III.G.
3. Whether the determination results in single occupancy or shared housing, the reasons shall be documented in the JPIP classification comments with the date and justification required by III.F, including the youth's stated preference and, where the assignment departs from that preference, the reason it does.
4. A single occupancy assignment made under this section shall not reduce the youth's access to programming, education, recreation, visiting, or any other activity, as III.K requires.
5. Nothing in this section limits a youth's right to request single occupancy housing. A request shall be documented under III.F and honored where operationally feasible.

J. All youth will be provided access to private showers.

K. Private accommodations shall not prevent transgender and intersex youth from participating in YDF program.

IV. Searches

A. All searches will be conducted in a professional and respectful manner by staff. Searches shall, to the extent possible, be performed in a way that preserves the privacy and dignity of the person being searched.

1. Youth shall not be physically searched for the purpose of determining the youth's anatomical sex.

2. In situations where the genital status of a youth is unknown, staff will attempt to determine the genital status through conversations with the youth or through a review conducted by medical personnel of medical records.

3. Staff will conduct searches based on biological sex except under exigent circumstances, when performed by a medical professional, or if a transgender or intersex youth makes a request for a preferred gender staff to conduct the search. Whenever feasible, YDF will respect the youth's preference regarding the gender of the staff who conducts any search of the youth.

a. Upon intake, the Identification Preference Form will be filled out for all youth. If a transgender or intersex youth makes a request that either a male or female staff member be present or conduct the search (patdown and/or strip search), the request will be forwarded to the on-duty supervisor to consider alternate arrangements in conducting the search consistent with maintaining safety and security. Prior to authorizing the search, the on-duty supervisor must meet directly with the youth and ensure the youth understands the stated preferred gender staff will be performing the search. The request, resolution with rationalization for the decision, and outcome including who ultimately conducted the search, will be documented in the youth's file, the Juvenile Probation Information Program (JPIP) and the YDF Strip Search Authorization Application, if applicable.

b. When conducting a strip search on a transgender or intersex youth:

1. Two (2) staff members shall be present, a preferred gender staff and second staff who will be of the opposite biological sex from the preferred gender staff.

2. The supervisor authorizing the strip search will brief the two staff members prior to the search to ensure each staff understands their role.

3. The preferred gender staff will conduct the search while the second staff remains within hearing, but out of view of the youth (absent exigent circumstances).

4. For safety and security purposes, the secondary staff shall be in a position to view searcher so as to offer aid if necessary.

5. Immediately following the strip search, the supervisor will debrief with the staff involved to determine if the process was completed without issue.

c. When conducting a patdown search on a transgender or intersex youth:

1. Two staff shall be present for the search. The staff with the preferred gender of the youth conducts the search while the second staff remains present and observes.

Attachments: Identity Preference Form; Ensuring Fairness and Respect for the LGBTQI

Amends/Replaces Previous Order: (blank on the signed order)

Findings recorded and not amended

Reading the whole order produced six findings that are not changes of wording, or not inside any numbered change. They are recorded here rather than drafted into the text.

Not amended, recorded instead: IV.A.3.b.3 and IV.A.3.b.4 cannot both be complied with. Subparagraph 3 places the second staff member "within hearing, but out of view of the youth". Subparagraph 4 requires that same staff member to be "in a position to view searcher". In a single room during a strip search the searcher and the youth occupy the same space, so a position that sees the searcher will ordinarily see the youth. Staff are given two rules and can follow one. This is a new finding from reading the order and it is a wording fix, but it is not inside any numbered change, so it is recorded here rather than drafted into the redline. The fix is one sentence: state which rule governs, and say what the second staff member does when the two cannot both be met.

Not amended, and it is a County Counsel question rather than a drafting one: IV.A.3 makes biological sex the default basis for searches. The preferred gender of staff is available only where the youth requests it and a supervisor approves, under IV.A.3.a. The register had recorded this provision as respecting the youth's preference whenever feasible, which is the second sentence of IV.A.3 and not the rule the first sentence states. 15 CCR 1360(g) prohibits cross gender pat down and strip searches except in exigent or medical circumstances. Whether a search of a transgender girl by male staff is a cross gender search for the purpose of 1360(g) is not answered on the face of either text, and this review does not answer it. Route it to County Counsel before any amendment is drafted.

Not amended: the order names the same form two ways. III.A and the attachment list call it the Identity Preference Form. IV.A.3.a calls it the Identification Preference Form. One form, two names, in one order. Worth correcting in the same amendment cycle, and not worth a tracked revision on its own.

Not amended: two attachments are named and neither has been produced to this review. The Identity Preference Form and a document titled Ensuring Fairness and Respect for the LGBTQI. The first is the instrument III.A and IV.A.3.a both run on, so what it actually asks the youth decides whether those provisions work. Both are now on the outstanding list.

Not amended: this order does not reference OO 1352 or OO 1350.5 anywhere in four pages. OO 1352 II.M.1.a points here for housing guidelines. Nothing here points back, and nothing here points at the screening order whose results are supposed to drive the housing decision. The cross reference runs one way only. Same structural finding recorded against OO 1352 at register rows 32 and 34.

Noted, not a defect: the signature is dated after the effective date. The order takes effect March 1, 2019 and the authorizing signature is dated 5/2019. Recorded because the effective date is what the register cites and someone will ask.

Before adoption

This is the order's own text, transcribed from the PDF produced on 10/30. Compare it against the signed original before adopting anything. The transcription preserves the order's own wording, punctuation and two grammatical slips in Section I, because a base text that has been tidied is no longer the base text.

The struck text in III.I is now the order's real words, and it is longer than this project previously recorded. Through Revision 11 the redline struck a reconstruction reading "All transgender and intersex youth shall be provided a single room." The order reads "All transgender and intersex youth shall be provided a single room in order to ensure their privacy and safety." The stated rationale was missing from the reconstruction. The finding is unchanged; the text being replaced is not.

The replacement language is this review's drafting, not the order's. It is the same five paragraphs proposed for change 2 in the redlines, and a build guard fails if the two ever differ.

Paragraph 2 makes single occupancy presumptive rather than automatic. A presumption applied without a real determination is the same defect in better clothes, so audit the JPIP entries required by paragraph 3 after adoption.

III.E, III.F and III.H already state the individualized rule this amendment points at. Confirm all three survive unchanged in the current version before the amendment relies on them.

Not legal advice. Route to County Counsel before adoption.

Drawn from gap register Revision 12. Accepting or rejecting the tracked changes in Word is the intended way to use this file, and the copy you save afterwards is the department's.

Redlines

Recommended changes 1 to 7

Sacramento County Probation Department
Youth Detention Facility

Amendment language for the seven changes correctable without new policy. Drawn from gap register Revision 12.

This is not legal advice. It is proposed amendment language prepared for internal remediation planning. Statutory questions, and every item in a Before adoption block, route to County Counsel.

Contents

How to read a redline

Each change gives the provision to strike, the language to insert in its place, the conforming edits the amendment needs to be complete, and a Before adoption block. Read that block first.

Struck text is shaded and struck through. Where the source order has not been produced to this review, the struck text is a reconstruction of what the register describes, not a quotation, and each item says which it is. Inserted language is shaded and is written to be pasted into the order with its own numbering.

Items 1 through 7 require no new policy and can be completed on an amendment cycle. They are ordered as they appear in the master report.

Source documents

Produced and read directly:

- OO 1354.5 Room Confinement
- OO 1390/1391 Discipline and Discipline Process
- Internal Complaints (Administrative P&P Manual)
- Title 15, Minimum Standards for Juvenile Facilities, rev. 04/01/2014
- OO 1352 Classification, eff. 12/09/2019, rev. 02/27/2020 (produced and read in full in Revision 9)
- Title 15, Minimum Standards for Juvenile Facilities, eff. 01/01/2019
- OO 1453 Sexual Assault, eff. 04/25/2013, rev. 12/09/2019 (produced and read in full in Revision 10)
- OO 1352.5 Transgender and Intersex Youth (produced 10/30/2026)

Not produced. Every provision cited in these documents traces to the register, which traces to the earlier review that read them. Confirm each section number and its wording against the PDF before any of this is circulated:

- PREA Policy and Procedure, Juvenile Institutions
- Internal Affairs Administrative Investigations

The seven changes

#	Change	Priority	Document
1	Rescind the S-8 single-room mandate	Critical	OO 1352 Classification (eff. 12/09/2019, rev. 02/27/2020), II.M, III.E, III.I
2	Convert the transgender and intersex single-room rule to a presumptive, documented outcome	Critical	OO 1352.5 Transgender and Intersex Youth (eff. 03/01/2019), III.I
3	Correct the mandated child abuse reporting standard and relocate the duty	Critical	PREA Policy and Procedure, Juvenile Institutions, V.A.4
4	Correct the cross-facility notification timeline	Critical	PREA Policy and Procedure, Juvenile Institutions, V.A.7

#	Change	Priority	Document
5	Rewrite the false allegations provision to a bad-faith standard	Critical	PREA Policy and Procedure, Juvenile Institutions, XIV.A
6	Delete the S-4 victim-to-perpetrator inference and split the code	High	OO 1352 Classification, II.F.2 and its note, II.G, II.H, III.E
7	Adopt a single reconciled records retention schedule	Critical	Internal Affairs Administrative Investigations, XI.C.1

1. Rescind the S-8 single-room mandate

Priority	Critical
Document	OO 1352 Classification (eff. 12/09/2019, rev. 02/27/2020), II.M, III.E, III.I
Authority	28 CFR 115.342(c) 15 CCR 1352(e), verified against the edition effective 04/01/2014 15 CCR 1324(k), verified against the edition effective 01/01/2019. Revision 5 cited this as 1324(h) from the 04/01/2014 edition; the 2019 rewrite renumbered it and broadened it 15 CCR 1352(f), verified against the edition effective 01/01/2019, a third and independent hook
Register rows	36, 75

The defect

OO 1352 II.M creates classification S-8 for any LGBTQI youth, and III.I requires single-room housing at all times for S-8. 15 CCR 1352(e) prohibits exactly that, and it has done so since at least April 1, 2014, which is verified against the produced text. S-8 was created December 9, 2019 and retained on the February 27, 2020 revision, five and a half years after the state rule was already in force. The provision also contradicts the Purpose and Scope paragraph of OO 1352 itself, PREA Policy III.E, and OO 1352.5 III.H, which took effect March 1, 2019 and states that staff shall not consider a youth's sexual orientation or gender identity as a reason to isolate or withhold program options. S-8 is materially broader than the OO 1352.5 III.I provision, because it sweeps in lesbian, gay, bisexual, and questioning youth for whom no anatomical privacy rationale exists at all. 15 CCR 1324(k), verified against the edition effective 01/01/2019, supplies a second and independent hook: the policy and procedure manual must itself bar classification and restrictive housing decisions made solely on these bases, so S-8 is a defect in the required contents of the manual as well as an operational violation.

Strike

OO 1352 II.M

~~Any Lesbian, Gay, Bisexual, Transgender, Questioning and Intersex (LGBTQI) youth to further protect against victimization/discrimination within the unit setting. a. See the Transgender and Intersex Youth Policy for housing guidelines.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. This is the order's actual text.

OO 1352 III.I

~~Any youth classified S-8 will require a single room (no roommate) housing at all times.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. This is the order's actual text.

OO 1352 III.E

~~Every S-8 entry in the housing matrix.~~

Described in the register, not read in this review.

Insert

OO 1352 II.M, replacing the struck text

Prohibited bases for separation and single occupancy assignment

1. Staff shall not separate a youth from the general population, and shall not assign a youth to a single occupancy room, based solely on the youth's actual or perceived race, ethnic group identification, ancestry, national origin, color, religion, gender, sexual orientation, gender identity, gender expression, mental or physical disability, or HIV status.

2. Nothing in this section prohibits placing a youth in a single occupancy room at the youth's own specific request, or in accordance with the separation provisions of this order, OO 1354, and OO 1354.5. A request under this paragraph shall be documented in JPIP with the date, the substance of the request, and the staff member who received it.

3. Where a youth's sexual orientation, gender identity, or gender expression is known to staff, that information shall be used as one input to the individualized housing determination required by OO 1352.5 III.B and III.F. It shall not by itself determine a housing assignment, a program assignment, or a classification code.

4. No classification code shall be created or maintained whose assignment carries an automatic housing consequence on any basis listed in paragraph 1.

Conforming changes

- Renumber the balance of section II if II.M is struck rather than replaced. The replacement language above is written to occupy II.M so that no renumbering is needed.
- Remove S-8 from the JPIP classification code table and from any classification worksheet, intake form, or screen that offers it, so the code cannot be assigned after the order is amended.
- Identify every youth currently carrying S-8 and re-determine housing individually under OO 1352.5 III.B and III.F within a stated number of days, documenting each outcome. Without this step the order changes and the practice does not.
- Add the amended provision to the next classification officer training cycle and to the OO 1322 training record.
- Confirm that the Purpose and Scope paragraph of OO 1352, PREA Policy III.E, and OO 1352.5 III.H now read consistently with the amendment. All three already state the correct rule.

Why

This is the strongest municipal liability exhibit in the packet and the clearest breach of a mandatory Title 15 duty. Government Code 815.6 attaches liability to the failure to discharge a mandatory duty imposed by enactment, and a regulation is an enactment under Government Code 810.6. The correction is a deletion and a four-paragraph insert, and its value grows the earlier it is dated: an amendment adopted before an incident is a compliance record, and one adopted after is an admission with a date on it.

Before adoption

- VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. The section numbers II.M and III.I and the struck text above are the order's own words, read from

the produced PDF, not a reconstruction. This redline may now circulate as a true redline.

- The order's Purpose and Scope paragraph already states the correct rule almost verbatim from 15 CCR 1352(e), including the carve-out for a single occupancy room "at the youth's specific request or in accordance with regulations regarding separation." The amendment below conforms II.M and III.I to the order's own Purpose paragraph. Say that to the policy shop: it is a consistency fix, not a new policy.
- II.M.1.a already defers housing to the Transgender and Intersex Youth Policy. III.I.1 then forecloses it. Deleting III.I.1 restores the deferral the order already contains.
- III.E.1.a imposes the identical mandate on S-4 High and is the only other provision in the order that does. Do not amend III.E.1.a here. It is a different question and it is not defective in the same way, but note that III.D.8, the deviation rule, is attached to the S-3 matrix and reaches neither mandate, so neither currently has a written override path.

2. Convert the transgender and intersex single-room rule to a presumptive, documented outcome

Priority	Critical
Document	OO 1352.5 Transgender and Intersex Youth (eff. 03/01/2019), III.I
Authority	28 CFR 115.342(c)-(g) 15 CCR 1352(e), verified against the edition effective 04/01/2014 and confirmed unchanged in the edition effective 01/01/2019 15 CCR 1352.5(c), verified in Revision 6 against the edition effective 01/01/2019, which is the operative edition
Register rows	37, 75

The defect

OO 1352.5 is otherwise a strong order. It supplies individualized assessment at admission, no automatic housing by external anatomy, documented reasons for any placement not matching gender identity, consideration of the youth's own preferences and provider recommendations, monthly reassessment which exceeds the twice-yearly federal minimum, private showers for all youth, and preservation of program participation. III.I undoes part of it by providing that all transgender and intersex youth shall be provided a single room. That is a categorical housing outcome assigned by status, which is what 115.342(c) and 15 CCR 1352(e) prohibit, and it contradicts III.B, III.F, and III.H within the same order. This version is more defensible than the S-8 mandate in OO 1352, because it is limited to transgender and intersex youth, states a privacy and safety rationale, and preserves program access. Categorical is still categorical.

Strike

OO 1352.5 III.I

~~All transgender and intersex youth shall be provided a single room in order to ensure their privacy and safety.~~

Quoted from the order, produced and read in full on 10/30.

Insert

OO 1352.5 III.I, replacing the struck text

Room assignment

1. The room assignment of a transgender or intersex youth shall be determined individually under III.B and III.F. It shall not be determined by the youth's status as transgender or intersex.

2. Single occupancy housing is the presumptive outcome of that determination, and the presumption is overcome where the individualized determination supports shared housing consistent with the youth's own perception of where the youth will be most secure. The determination shall be revisited at each reassessment required by III.G.

3. Whether the determination results in single occupancy or shared housing, the reasons shall be documented in the JPIP classification comments with the date and justification required by III.F, including the youth's stated preference and, where the assignment departs from that preference,

the reason it does.

4. A single occupancy assignment made under this section shall not reduce the youth's access to programming, education, recreation, visiting, or any other activity, as III.K requires.

5. Nothing in this section limits a youth's right to request single occupancy housing. A request shall be documented under III.F and honored where operationally feasible.

Conforming changes

- Add a line to the JPIP classification comment prompt so the documentation required by paragraph 3 is captured at the point of decision rather than reconstructed later.
- Confirm the cross-reference in OO 1352 after change 1 is adopted, so the two orders point at the same individualized determination.
- Cross-reference OO 1360 IV to OO 1352.5 IV.A.3.b on searches, which is a separate open recommendation and is cheapest to adopt in the same amendment cycle.

Why

Preserves the protective intent that produced III.I while removing the categorical defect, and resolves the internal contradiction with III.B, III.F, and III.H of the same order. The presumption does the operational work that the mandate was doing, and the documentation requirement is what makes it a determination rather than a rule in different words. State the presumption plainly, and audit the JPIP entries: a presumption applied without a real determination is the same defect wearing better clothes.

Before adoption

- OO 1352.5 was produced and read in full on 10/30, so the struck text above is the order's own words rather than a reconstruction. Through Revision 11 this item struck a reconstruction reading "All transgender and intersex youth shall be provided a single room," which omitted the order's stated rationale. The finding is unchanged; the text being replaced is longer than this project previously recorded.
- The 15 CCR 1352.5 citation is verified. It was carried as unconfirmed through Revision 5 because it is absent from the 04/01/2014 edition of Title 15, and Revision 6 confirmed it against the edition effective 01/01/2019, where it runs (a) to (e). The edition effective 01/01/2019 is the operative one. The January 2023 revision is a pending proposal and must not be relied on.
- III.B, III.F and III.H were confirmed verbatim on reading the order, so paragraphs 1 to 3 of the insert point at provisions that exist and say what this amendment assumes they say. III.E, not previously in the register, adds background, age, developmental status, sophistication, social skills, charges and behavioral history to the same determination.

3. Correct the mandated child abuse reporting standard and relocate the duty

Priority	Critical
Document	PREA Policy and Procedure, Juvenile Institutions, V.A.4 OO 1453 Sexual Assault (rev. 12/09/2019), I.A.9 New department-wide General Order on child abuse and neglect reporting
Authority	28 CFR 115.361(b) Penal Code 11166(a), 11165.9, 11166(i)(1), 11166(j), 11172(a) Penal Code 11166(c), penalties
Register rows	48, 77

The defect

The twenty-four hour Child Protective Services timeline appears in two departmental documents. PREA Policy V.A.4 states it, and OO 1453 I.A.9 restates it: all incidents of sexual assault shall be reported to Child Protective Services verbally within twenty-four hours, with the written report within thirty-six hours. Penal Code 11166(a) requires the telephone report immediately or as soon as is practicably possible. OO 1453 was last revised December 9, 2019, six years after the PREA policy, so the department restated the error rather than catching it on review. The Code of Conduct at VII.A.1 states the standard correctly, so three departmental documents address the same duty and two of them are wrong. A policy that tells a mandated reporter a report is timely at twenty-three hours is telling that employee to commit a misdemeanor, and the employee, not the department, carries that exposure.

Strike

OO 1453 Sexual Assault, I.A.9

~~All incidents of sexual assault shall be reported to Child Protective Services verbally within 24 hours. A formal written reported shall be completed and forwarded to Child Protective Services within 36 hours of receiving information concerning the incident.~~

VERIFIED in Revision 10 against OO 1453 as produced, eff. 04/25/2013, rev. 12/09/2019. This is the order's actual text, including the typographical error in "written reported", which is the order's and not a transcription slip.

PREA Policy and Procedure, Juvenile Institutions, V.A.4

~~All incidents of sexual assault shall be reported to Child Protective Services verbally within 24 hours, with a written report submitted within 36 hours.~~

Described in the register, not read in this review. The PREA Policy has still never been produced. Replace this with the policy's real words before circulating.

Insert

Stage one, the interim in-place correction. Adopt in PREA Policy V.A.4 and OO 1453 I.A.9 now, without waiting for the General Order.

Mandated reporting of child abuse and neglect

1. An employee who, in their professional capacity or within the scope of their employment, has knowledge of or observes a resident whom the employee knows or reasonably suspects has been the victim of child abuse or neglect shall make a report to an agency specified in Penal Code section 11165.9 immediately, or as soon as is practicably possible, by telephone, and shall prepare and send, fax, or electronically transmit a written follow-up report on Department of Justice form SS 8572 within thirty-six hours of receiving the information concerning the incident.

2. The duty imposed by paragraph 1 is individual and may not be delegated. Notifying a supervisor, the Duty Supervisor, Internal Affairs, or any departmental office does not satisfy the duty and does not delay it. Internal notification requirements in this policy are in addition to the mandated report, not a substitute for it and not a step before it.

3. No supervisor or administrator shall impede or inhibit a report, and no employee shall be subject to any sanction for making a report.

4. Where the department receives a report of suspected child abuse or neglect in its capacity as a county probation department, it shall itself report the information to the law enforcement agency having jurisdiction over the case, to the agency responsible for investigating the matter under Welfare and Institutions Code section 300, and to the district attorney's office, by telephone, fax, or electronic transmission immediately or as soon as practicably possible, with the written report within thirty-six hours.

Stage two, once the General Order issues. Replaces stage one in PREA Policy V.A.4 and OO 1453 I.A.9.

Cross-reference

Any incident of suspected child abuse or neglect, including any sexual abuse or sexual assault of a resident, shall be reported in accordance with the General Order on Mandatory Reporting of Child Abuse and Neglect. Nothing in this policy alters, delays, or adds a condition to the duty imposed by Penal Code section 11166(a).

Conforming changes

- Do not delete the incident reporting and Duty Supervisor notification duties in either document. Paragraph 2 of stage one is drafted so the internal duties survive alongside the mandated report rather than competing with it.
- Conform the Code of Conduct VII.A.1 to the same cross-reference once the General Order issues. It is currently correct, so it is a consistency edit, not a correction.
- Add the reporting standard to the Tier 1 training outline and to the annual refresher, and keep a signed acknowledgment on file. Confirm with County Counsel whether Penal Code 11166.5 applies to departmental employees.
- Add a cross-reference for residents aged eighteen and older, who fall outside CANRA, to the existing General Order on Mandatory Reporting of Dependent Adult and Elder Abuse.
- CORRECT THE SCOPE AS WELL AS THE TIMELINE, new in Revision 10 from reading the whole of OO 1453. Every operative duty in that order is keyed to "sexual assault": the Purpose paragraph's staff reporting duty, I.A.9's CPS report, and I.A.15's incident review. Nothing in the three pages reaches sexual harassment, exposure, or touching not characterised as assault. But PC 11165.1(b)(4) makes the intentional touching of a child's intimate parts for sexual arousal

reportable, and (b)(5) makes masturbation in a child's presence reportable on the first occurrence. So the order as written misses reportable conduct. The insert below is drafted to the CANRA trigger rather than to the word "assault", which fixes both defects in one amendment.

- While I.A.9 is open, consider amending I.A.6 in the same cycle. It directs a Miranda warning before questioning a suspect and says nothing about the WIC 625.6 consultation with counsel, which has been mandatory and unwaivable for youth 17 and under since 01/01/2021. That is register row 91 and conflict 13, and it is a separate amendment rather than part of this one, but it is in the same order and the same revision cycle.

Why

This ends the practice of restating a legal standard in multiple documents, which is how the error propagated and how it survived a 2019 revision. The relocation matters as much as the correction: a single General Order is one place to amend when the Penal Code changes, and one place for an auditor or a plaintiff to look. Stage one exists because the General Order will take an approval cycle that the current text cannot safely wait through.

Before adoption

- VERIFIED in Revision 10 against OO 1453 as produced, eff. 04/25/2013, rev. 12/09/2019. I.A.9 and its section number are the order's own words and this half of the redline may now circulate as a true redline.
- The PREA Policy has still never been produced. V.A.4 above is a reconstruction of what the register describes, not a quotation, and the section number traces to the register. Confirm it against the policy before circulating.
- Paragraph 4 assumes the department receives mandated reports in its capacity as a county probation department. Penal Code 11165.9 makes that turn on whether the county has designated the probation department to receive them. That designation is still unconfirmed. Confirm before adopting it.
- Full contents for the General Order are in the master report at Part 4.1. Model its structure on the existing Dependent Adult and Elder Abuse General Order, which is the department's own working template for this kind of duty.

4. Correct the cross-facility notification timeline

Priority	Critical
Document	PREA Policy and Procedure, Juvenile Institutions, V.A.7
Authority	28 CFR 115.363(a)-(d)
Register rows	52, 47

The defect

The policy sets a fourteen-day window for the Chief Deputy or Assistant Chief Deputy to notify the head of the facility where the abuse allegedly occurred. The federal standard is seventy-two hours. The fourteen-day figure appears to have been carried over from the attorney notification timeline at 115.361(e)(3). This is a straight timeline error and the shortest correction in the set.

Strike

PREA Policy V.A.7

~~Within 14 days of receiving the allegation, the Chief Deputy or Assistant Chief Deputy shall notify the head of the facility where the alleged abuse occurred.~~

Described in the register, not read in this review.

Insert

PREA Policy V.A.7, replacing the struck text

Allegations of abuse at another facility

1. Upon receiving an allegation that a resident was sexually abused while confined at another facility, the Chief Deputy or Assistant Chief Deputy shall notify the head of that facility, or the appropriate office of the agency operating it, and the appropriate investigative agency, as soon as possible and no later than seventy-two hours after receiving the allegation.

2. The notification shall be documented in writing, recording the date and time the allegation was received, the date and time of the notification, the person notified, and the method used. The documentation shall be retained under the department's records retention schedule for sexual abuse records.

3. Where the department receives such a notification from another agency, the facility administrator shall ensure the allegation is referred for investigation in accordance with this policy, and shall document the referral.

Conforming changes

- Check every other timeline in PREA Policy section V against the standard it implements, since the fourteen-day figure looks like a transposition from the attorney notification rule and a transposition rarely happens once.
- The reporting duty at 115.361(a) is a separate open item that lives in the same section and should be amended in the same cycle: sexual harassment as a separately reportable category,

reports of retaliation, and reports of staff neglect or violation of responsibilities contributing to an incident.

Why

28 CFR 115.363(b). One sentence, no policy judgment required, and it removes a provision that on its face directs staff to sit on an allegation for up to eleven days longer than the standard allows. Paragraph 3 adds the receiving side of the same standard, which the current policy does not address at all and which costs nothing to include in the same amendment.

Before adoption

- The PREA Policy has not been produced to this review. Confirm the V.A.7 numbering and wording against the PDF.
- The reference to a records retention schedule in paragraph 2 assumes change 7 is adopted. If change 7 is deferred, cite the existing schedule instead, and note that the existing schedule is the subject of change 7.

5. Rewrite the false allegations provision to a bad-faith standard

Priority	Critical
Document	PREA Policy and Procedure, Juvenile Institutions, XIV.A
Authority	28 CFR 115.378(f), good-faith reporting protection, verified 28 CFR 115.352(g), discipline only on a demonstrated bad-faith showing 15 CCR 1391(f), due process for major rule violations as a class, verified against the edition effective 01/01/2019. Revision 5 cited this as 1391(e) from the 04/01/2014 edition; the 2019 rewrite renumbered it, and 1391(e) is now minor rule violations
Register rows	64, 42

The defect

PREA Policy XIV.A permits discipline where an investigation determines allegations were false. 115.378(f) protects a good-faith report based on a reasonable belief even where the investigation does not substantiate it, and 115.352(g) permits discipline only where the agency demonstrates the report was made in bad faith. Unsubstantiated is not the same finding as false, and the current provision collapses the two. As written it chills reporting, and it will be read to a jury that way in any case where the department argues it had no notice. OO 1390/1391 contains no false reporting provision, so it neither cures nor compounds the defect, and neither its minor nor its major rule violation list includes false reporting or lying. That is worth preserving in the rewrite.

Strike

PREA Policy XIV.A

~~A resident may be subject to disciplinary action where an investigation determines that the allegation was false.~~

Described in the register, not read in this review.

Insert

PREA Policy XIV.A, replacing the struck text

Reports made in good faith

1. A resident or employee who reports sexual abuse or sexual harassment in good faith, based on a reasonable belief that the conduct described occurred, has not made a false report and has not engaged in lying, even where the investigation does not substantiate the allegation. A finding that an allegation is unsubstantiated is not a finding that the report was false.

2. A resident may be disciplined in connection with a report of sexual abuse or sexual harassment only where the department demonstrates that the resident made the report in bad faith. The demonstration shall be made through the disciplinary process in OO 1390/1391, and the basis for the bad-faith finding shall be stated in the written finding required by that process.

3. No employee shall be disciplined or subjected to any adverse action for reporting sexual abuse or sexual harassment in good faith, and no employee shall be disciplined for a report that is not substantiated.

4. Neither the minor nor the major rule violation lists in OO 1390/1391 includes false reporting or lying, and nothing in this section creates such a violation.

Conforming changes

- Add the companion provision from the same standard in the same amendment: a resident may be disciplined for sexual contact with a staff member only upon a finding that the staff member did not consent to the contact. The subsection lettering for this element is not asserted here, so state it by content until the CFR is checked.
- Add the same bad-faith rule to OO 1361 so a youth who files a sexual abuse grievance is protected at the point of filing as well as at the point of discipline. This is one of the five open grievance items and it is the cheapest of them.
- Where the department wants a route for a demonstrably fabricated report, paragraph 2 supplies it. Do not add a separate false reporting rule violation to OO 1390/1391; that would recreate the defect in a second document.

Why

28 CFR 115.378(f) and 115.352(g). Beyond compliance, the current provision damages the department's own defense. Every failure-to-protect case turns on notice, and a policy that punishes unsubstantiated reports is the plaintiff's explanation for why the department has so few of them. The rewrite costs nothing operationally: paragraph 2 preserves the ability to discipline the fabricated report, and puts the burden where the standard puts it.

Before adoption

- The PREA Policy has not been produced to this review. Confirm the XIV.A numbering and wording against the PDF.
- Only 115.378(f) is verified. The subsection lettering inside 115.378 beyond (f) is not asserted, because network egress in the drafting environment is restricted and eCFR could not be reached. Check the lettering against the CFR before the authority line goes into an adopted order. This is open question 12.

6. Delete the S-4 victim-to-perpetrator inference and split the code

Priority	High
Document	OO 1352 Classification, II.F.2 and its note, II.G, II.H, III.E
Authority	28 CFR 115.341(c) 28 CFR 115.342 15 CCR 1350.5(a), confirmed against the edition effective 01/01/2019 in Revision 6 Penal Code 287, renumbered from 288a by SB 1494 effective 01/01/2019
Register rows	80, 78, 32

The defect

Two problems in the S-4 classification. First, the note at II.F.2 states that a youth with a history of being a victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies. That instructs staff to treat a youth's own sexual victimization as a predictor of sexual abusiveness. The Macdonald triad on which the molest, arson, and animal cruelty grouping rests has not held up, and the inference runs against 115.341(c), which lists prior victimization and prior abusiveness as separate factors serving different purposes. The same inference also appears as a lettered criterion at II.F.2.d, "History of victimization related to sexual abuse or a sexual offense," so striking the note alone leaves the defect in force. The order then contradicts itself on the same fact: II.H.3 makes being the victim of a CPS referral relative to sexual abuse a criterion for S-4 Low, which the III.E.2 housing matrix treats protectively. Second, S-4 as a code mixes populations: S-4 High captures youth with sex offense adjudications, while S-4 Low captures both youth who act out sexually and youth who have been victims of sexual abuse or are susceptible to victimization. The housing matrix at III.E keeps those populations apart in practice, so the operational outcome is sound. The defect is in the classification logic and its documentation, and it will not survive an auditor tracing how victimization risk and abusiveness risk are separately assessed and separately acted on.

Strike

OO 1352 II.F.2, the note

~~Youth with a history of victim of molest, arson, or cruelty to animals should alert the Classification Officer for possible sexually inappropriate tendencies.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. This is the order's actual text, bolded in the original.

OO 1352 II.F.2.d

~~d. History of victimization related to sexual abuse or a sexual offense;~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. MISSED BY THIS REDLINE AS FIRST DRAFTED, added in Revision 9.

OO 1352 II.H

~~II.H.2, "Sexually inappropriate acting out in front of other youth or staff (i.e., masturbation in front of others, exposing genitals, or continued sexual comments for the purpose of arousal)," which places~~

~~perpetrator conduct in the same S-4 Low tier as II.H.3 and II.H.4, both of which are victimization criteria.~~

VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020.

Insert

OO 1352 II.F.2, replacing the struck note

Use of victimization history

A youth's history of sexual victimization shall be assessed and recorded as a risk of victimization under II.H. It shall not be treated as an indicator that the youth is likely to be sexually abusive toward others, and it shall not be used to assign a code under II.G.

OO 1352 II.G, risk of sexual abusiveness

S-4A, risk of being sexually abusive toward other youth

1. Assign S-4A where the youth has a sustained petition, conviction, or documented finding for an offense under Penal Code sections 261, 261.5, 286, 287, 288, 288.5, 289, or 289.6, or under any successor or equivalent statute.

2. Assign S-4A where the youth has documented sexually aggressive or sexually coercive conduct toward another person while in custody, in placement, or in the community, whether or not it resulted in a petition.

3. The basis for an S-4A assignment shall be recorded in JPIP with the source of the information and the date.

OO 1352 II.H, risk of sexual victimization

S-4B, risk of being sexually abused by other youth

1. Assign S-4B where screening under OO 1350.5 identifies the youth as at risk of sexual victimization, including prior sexual victimization whether or not it occurred in custody.

2. An S-4A assignment and an S-4B assignment are independent. A youth may carry both, one, or neither, and each shall be assessed, coded, and documented separately.

3. Information obtained under this section shall be used only to inform housing, bed, education, and program assignments, and to determine appropriate services and supervision. It shall not be used to discipline the youth or to justify a more restrictive placement than the individualized determination supports.

Conforming changes

- Rebuild the III.E housing matrix on the S-4A and S-4B codes. The matrix already keeps these populations apart, so this is a relabeling of a working rule, not a change to it.
- Add Penal Code 287 AND 289 to the S-4 High enumerated offences. VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. The complete enumeration is II.G.1 ("a. Sodomy (286 PC); b. Lewd or lascivious acts with child under 14 (288 PC, all sub-

divisions)") plus II.G.3 (rape, 261 PC, all sub-divisions). PC 287 is omitted as recorded, and so is PC 289, sexual penetration, which was never flagged and is comparably serious. Also absent: 243.4, 264.1, 285 and 647.6. The insert at II.G.1 above already carries all of them, and the successor-statute catch-all prevents the next renumbering from reopening the same gap.

- Correct PREA Policy I.I.1, which cites Penal Code section 288a (Oral Copulation). 288a was renumbered to 287 by SB 1494 effective January 1, 2019. Same amendment cycle, different document.
- Delete the reference in OO 1352 II.C.3 to a pending commitment to the Division of Juvenile Justice. DJJ closed June 30, 2023 under SB 823. VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. IV.A carries a second DJJ reference, as the worked example of a legal status change requiring classification review. Delete both.
- Update the JPIP code table, the classification worksheet, and classification officer training to the split codes, and map existing S-4 assignments onto S-4A, S-4B, or both.

Why

115.341(c) treats prior victimization and prior abusiveness as separate factors driving different responses, and 115.342 requires the results be used to keep residents safe rather than to restrict them. The housing matrix already produces the right operational answer; the defect is that the department cannot show its work. The note at II.F.2 is the sharper problem: it is one sentence, it is indefensible on the current science, and in litigation it is a gift to a plaintiff's expert. It should not survive another revision cycle.

Before adoption

- VERIFIED in Revision 9 against OO 1352 as produced, eff. 12/09/2019, rev. 02/27/2020. II.F.2, II.G, II.H and III.E are confirmed as cited and the struck text is the order's own words. This redline may now circulate as a true redline.
- The S-4 High and S-4 Low split the register describes is confirmed and is sounder than its label suggests, so the insert below is a relabeling and separation of an existing structure rather than the invention of a new one. Say that to the policy shop.
- OO 1352 never references OO 1350.5 anywhere in its twelve pages. The insert at II.H.1 creates that cross-reference for the first time. Confirm OO 1350.5's section numbering before adopting it.
- **Penal Code 261.5, 288.5 and 289.6 in the S-4A offence list are the drafter's judgment**, not sections the order enumerates and not sections this review has verified as the right additions. Only 287 and 289 are confirmed omissions, recorded against the order's own enumeration at II.G.1 and II.G.3. Confirm all three with County Counsel, or strike them and keep the successor-statute catch-all, which is what stops the next renumbering reopening the gap that 287 left. **The same caveat appears on the tracked changes copy of OO 1352, and the two say the same thing on purpose.**

7. Adopt a single reconciled records retention schedule

Priority	Critical
Document	Internal Affairs Administrative Investigations, XI.C.1 PREA Policy and Procedure, Juvenile Institutions, XVIII.B Internal Complaints (Administrative P&P Manual, rev. 10/30/2013), retention provision
Authority	28 CFR 115.371(j) 28 CFR 115.389(c), ten-year data retention Code of Civil Procedure 340.1 as amended by AB 452 Code of Civil Procedure 352; Government Code 905(m)
Register rows	59, 72

The defect

Three different retention rules govern the same records, and a fourth document points at one of them without stating a period. Internal Affairs XI.C.1 retains records of citizen complaints, formal investigations, and dispositions for at least five years. PREA Policy XVIII.B retains all case records associated with claims of sexual abuse for at least ten years. 115.371(j) requires investigation reports to be retained as long as the alleged abuser is incarcerated or employed by the agency, plus five years, which for a long-tenured employee is far longer than either. Internal Complaints states that all discretionary and non-discretionary investigative documentation and evidence shall be retained by Internal Affairs, with no period, so the reconciled schedule has to be reflected in four documents rather than three. A department that destroys a sexual abuse investigation file at five years under the Internal Affairs schedule violates its own PREA policy and the federal standard in the same act.

Strike

Internal Affairs XI.C.1

~~The five-year period, as applied to records within the scope of the schedule below. The five-year rule may stand for other citizen complaint records.~~

Described in the register, not read in this review.

PREA Policy XVIII.B

~~The ten-year period stated as the retention rule for case records associated with claims of sexual abuse, which is replaced by the cross-reference below.~~

Described in the register, not read in this review.

Insert

New provision, adopted in identical terms in all four documents

Records retention, sexual abuse and sexual harassment

1. Scope. This section governs every record created in connection with an allegation, investigation, or incident of sexual abuse or sexual harassment involving a resident, including the grievance or intake document, the Personnel Complaint Intake Form, incident reports, investigative reports and case

files, witness statements, video and audio recordings, photographs, records of medical and mental health referrals made in response, and the disciplinary or personnel outcome.

2. Retention. A record within paragraph 1 shall be retained for the longest of the following: ten years from the date the case is closed; for records of an investigation into alleged staff conduct, as long as the alleged abuser remains incarcerated or employed by the department, plus five years; ten years after the resident reaches eighteen years of age, where the resident was under eighteen at the time of the alleged conduct; and any longer period required by law, by a litigation hold, or by the records retention schedule adopted by the County.

3. Conduct occurring on or after January 1, 2024. Code of Civil Procedure section 340.1, as amended by Assembly Bill 452, eliminated the limitations period for a claim of childhood sexual assault occurring on or after that date. No record within paragraph 1 concerning conduct on or after January 1, 2024 shall be destroyed until County Counsel has determined the applicable schedule in light of that section.

4. Hold. No record within paragraph 1 shall be destroyed while any claim, investigation, audit, inspection, or litigation involving the incident is pending or reasonably anticipated.

5. Authorization and log. Destruction of a record within paragraph 1 requires written authorization from the Internal Affairs Manager. Each destruction shall be entered in a log identifying the record, the authority relied on, the date, and the person authorizing it.

6. Aggregated data. Data collected under the department's PREA data provisions shall be securely retained for at least ten years, with personal identifiers removed before any publication.

Conforming changes

- Adopt paragraph 1 through 5 verbatim in all four documents rather than paraphrasing in each. Paraphrase is what produced the three-way conflict.
- Where a document already states a period, replace the period with the cross-reference so there is exactly one schedule in force.
- Confirm the retention rule reaches video. Video is the record most often governed by a separate and much shorter system retention default, and it is the record most likely to decide a case.
- Adopt the schedule with County Counsel, not by policy revision alone. The Government Claims Act presentation requirement does not apply to these claims under Government Code 905(m), so the department will not see a claim before suit.
- The Institutional Policy on Documentation, Confidentiality and Maintenance of Records and the Institutional Policy on Video Recording and Photograph System are both outstanding. Request them before the schedule is finalized, since either may already carry a conflicting period.

Why

AB 452 eliminated the limitations period for childhood sexual assault occurring on or after January 1, 2024, and Code of Civil Procedure 352 tolls a minor's limitations period for earlier incidents. The practical exposure is a file destroyed years before suit is filed. Destruction under the current five-year Internal Affairs schedule risks an adverse inference instruction and the loss of any ability to defend on the merits, and CCP 340.1 provides treble damages where a cover-up is shown. This is the one change

in the set the department cannot fully solve on its own: paragraph 3 is drafted as a moratorium precisely because no fixed period covers a claim with no limitations period.

Before adoption

- Neither the Internal Affairs policy nor the PREA Policy has been produced to this review. Confirm XI.C.1 and XVIII.B against the PDFs.
- Internal Complaints has been produced and read, so its retention sentence is the one item in this change that is grounded in the source document.
- Paragraph 2 and paragraph 3 are drafting proposals, not legal advice. Route both to County Counsel before adoption, together with the question of whether the County's own records retention schedule already binds these records to a shorter period.
- CORRECTED IN REVISION 10. This change previously listed "OO 1453 Sexual Assault, records provisions" among its targets. OO 1453 was produced and read in full in Revision 10 and IT HAS NO RECORDS RETENTION PROVISION. Three pages, fifteen numbered items, none of which sets a retention period. I.A.11.c places evidence in the evidence locker at Intake and Booking, which is chain of custody rather than retention, and I.A.14 forwards investigative reports to the Supervising District Attorney and the Sheriff's Sexual Assaults Unit. The target has been removed. The practical effect narrows this change in the department's favour: the retention conflict is between Internal Affairs XI.C.1 and PREA Policy XVIII.B, with the Internal Complaints provision alongside them, and OO 1453 contributes nothing to reconcile.

The eleven staffing plan factors

28 CFR 115.313(a). Sacramento County Probation Department, Youth Detention Facility. Register row 5, recommended change 9.

The agency shall develop, document, and make its best efforts to comply on a regular basis with a staffing plan that provides for adequate levels of staffing and, where applicable, video monitoring, to protect residents against sexual abuse. In calculating adequate staffing levels and determining the need for video monitoring, the agency shall take into consideration:

#	Factor	What it asks YDF for
1	Generally accepted juvenile detention, correctional, or secure residential practices	Benchmarking against professional standards, not only Title 15.
2	Any judicial findings of inadequacy	Consent decrees, court orders, findings in past litigation.
3	Any findings of inadequacy from Federal investigative agencies	DOJ Civil Rights Division, any CRIPA activity.
4	Any findings of inadequacy from internal or external oversight bodies	BSCC inspection findings, the juvenile court judge's annual inspection, the Juvenile Justice and Delinquency Prevention Commission, the OYCR Ombudsperson, and internal reviews.
5	All components of the facility's physical plant, including blind spots or areas where staff or residents may be isolated	A walked and documented sightline survey of every unit, with camera coverage mapped against it.
6	The composition of the resident population	Age spread, size and stature, screening results under 15 CCR 1350.5, who is classified where.
7	The number and placement of supervisory staff	Not headcount alone. Where supervisors physically are, by shift.
8	Institution programs occurring on a particular shift	School, visiting, recreation, medical passes. Staffing that works at 0300 does not work during program movement.
9	Any applicable State or local laws, regulations, or standards	15 CCR 1321(h)(1), and the fact that 15 CCR 1301 permits the county to exceed it.
10	The prevalence of substantiated and unsubstantiated incidents of sexual abuse	Departmental incident data by location and shift. Currently blocked: the Internal Affairs six-category disposition taxonomy does not map to the three PREA findings. See register row 81.
11	Any other relevant factors	The catch-all.

Then 115.313(b). Where the staffing plan is not complied with, the facility shall document and justify all deviations. That is the provision that turns the plan from paper into a record.

Verification. The eleven factors are corroborated from two independent searches, including exact-phrase matches against the Cornell, eCFR, and PREA Resource Center listings of the standard. They

have not been read from the Code of Federal Regulations itself, because network access to eCFR, Cornell, govinfo, and the PREA Resource Center was unavailable when this was prepared. Confirm the wording and numbering against 28 CFR 115.313(a) before this is adopted into a staffing plan.

Not legal advice. Prepared for internal remediation planning. Statutory questions route to County Counsel.